

seeking court approval of the compromise and proposed disposition set forth therein. See Code Civ. Proc. § 372 and Rule 7.950 *et seq.* of the California Rules of Court (CRC). The Minor's Compromise was set for hearing on September 21, 2026. Thereafter, the hearing date was advanced to July 6, 2026. See Order entered June 16, 2026.

Analysis

The Minor's Compromise is unopposed. The Court has considered the verified Minor's Compromise and finds the proposed terms to be just and reasonable.

Disposition

The Court finds and rules as follows:

1. The Minor's Compromise is APPROVED.
2. The Court shall enter the proposed form of order lodged with the moving papers.

8. 9:00 AM CASE NUMBER: C25-03817
CASE NAME: PHADENDRA TIMILSINA VS. EVERBRIGHT, LLC,
***MOTION/PETITION TO COMPEL ARBITRATION**
FILED BY: BRIGHT PLANET SOLAR, INC.,
TENTATIVE RULING:

Defendant Bright Planet Solar, Inc.'s motion to compel arbitration is **GRANTED**.

Plaintiff has owned his home since 2019. In 2024, an Everbright salesperson told Plaintiff that due to new technology, Plaintiff did not need as many solar panels and thus solar panels would be a feasible option for Plaintiff. Plaintiff alleges some confusing and high-pressure sales tactics. Ultimately, Plaintiff agreed to have solar panels installed although he alleges that he was misled as to where the panels would be installed. (Comp. ex. A.) Bright Panel was the company responsible for installation. When it came time to install the solar panels, Plaintiff was told that the panels would be installed on the patio and not just the roof. Ultimately, the installation of solar panels on the patio caused the patio roof to leak, creating water damage to the home. The installation also resulted in structural problems with the patio roof.

Plaintiff filed this case against Everbright and Bright Panel for (1) fraud (Everbright only), (2) fraud by concealment (Everbright only), (3) negligent misrepresentation (Everbright only), (4) violation of Consumer Legal Remedies Act, (5) Unfair competition, (6) negligence, (7) violation of Civil Code section 1689.5 (Everbright only), (8) construction defect, (9) breach of warranties and (10) violation of home improvement contract requirements.

Bright Planet filed this motion to compel arbitration seeking to have all claims against it sent to arbitration.

Existence of an Agreement to Arbitrate

Whether the arbitration agreement is governed by the Federal Arbitration Act, 9 U.S.C. § 1, *et seq.* ("FAA") or by the California Arbitration Act, Code of Civil Procedure section 1280 *et seq.* ("CAA"), the threshold issue of whether a valid and enforceable agreement to arbitrate exists is determined under California law and procedures. (*Rosenthal v. Great Western Fin. Securities Corp.* (1996) 14 Cal.4th 394, 413; Code Civ. Proc. 1281, 1281.2, 1290.2.) Arbitration agreements may be invalidated on

the same grounds other contracts may be invalidated, including fraud, duress or unconscionability. (*Armendariz v. Foundation Health Psych. Servs., Inc.* (2000) 24 Cal.4th 83, 98.

“[B]efore a court may order the parties to arbitration, the court must determine the threshold question of whether a valid agreement to arbitrate exists. [Citations.] The party seeking to compel arbitration bears the burden of establishing a valid agreement to arbitrate by a preponderance of the evidence, while the party opposing arbitration bears the burden of establishing any necessary facts in defense by a preponderance of the evidence. [Citations.]” (*Jones v. Solgen Construction, LLC* (2024) 99 Cal.App.5th 1178, 1195.)

Plaintiff argues that he never knowingly agreed to arbitrate his claims due to fraud. The complaint attaches the solar agreement with Everbright and Bright Planet, which includes an arbitration clause with Bright Planet at pages 33-34 of exhibit A.

“[C]laims of fraud in the execution of the entire agreement are not arbitrable under either state or federal law.” (*Rosenthal, supra*, 14 Cal.4th at 416.) Fraud in execution or inception occurs when “‘the promisor is deceived as to the nature of his act, and actually does not know what he is signing, or does not intend to enter into a contract at all, mutual assent is lacking, and [the contract] is void.’” (*Id.* at 415.) “Fraud in the inducement, by contrast, occurs when “‘the promisor knows what he is signing but his consent is *induced* by fraud, mutual assent is present and a contract is formed, which, by reason of the fraud, is *voidable*.’” (*Ibid.*)

“In order to defeat a petition to compel arbitration, the parties opposing a petition to compel must show that the asserted fraud claim goes specifically ‘to the ‘making’ of the agreement to arbitrate,’ rather than to the making of the contract in general.” (*Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 973.) “‘The allegation [and evidence] may be directed solely at the “making” of the agreement to arbitrate or, as recognized by the doctrine of fraud in the inception, it may be directed at the “making” of the contract as a whole.’ [Citation.]” (*Rosenthal, supra*, 14 Cal.4th at 417.)

Here, Plaintiff declares that his primary language is Nepali and while he can communicate in English his ability to read and understand lengthy documents is limited. (Timilsina dec. ¶3.) Plaintiff states that he had several conversations with Everbright and Bright Planet representatives and relied on the information and explanations provided by them. (Timilsina dec. ¶5-7.) Plaintiff “understood... that certain documents needed to be signed so that they could begin the permitting and approval process for the proposed solar project.” (Timilsina dec. ¶8.) But he “was led to believe that [he] would later have an opportunity to review and approve the final details of the project before moving forward with installation.” (Timilsina dec. ¶9.) No one ever told Plaintiff that there was an arbitration agreement in the contract. (Timilsina dec. ¶10.) He was instructed where and when to sign. (Timilsina dec. ¶17.) Plaintiff was shown the documents at 5:31:22pm and signed them at 5:32:45pm. (Timilsina dec. ¶22; Bhandari dec. ¶13 and ex. B.)

Defendant provides no evidence from its sales representative or those from Everbright regarding when occurred when Plaintiff signed the contract.

The Court finds that the preponderance of the evidence shows Plaintiff entered into the contract containing the arbitration clause with Bright Planet. Plaintiff acknowledges that he signed the document when and where he was told to do so. He also acknowledges that he knew he was signing some documents so that the defendants could start the permitting and approval process. But Plaintiff argues that he was led to believe he could finalize the agreement later. This evidence shows that Plaintiff knew he was signing an agreement with the defendants (which included the arbitration

agreement with Bright Planet), even if, allegedly, he did not understand the full scope of the agreement due to misrepresentations by the defendants. He has not shown that such misrepresentations were related to the agreement to arbitrate. The Court finds that this evidence does not show fraud in the execution or inception, and thus, Defendant has shown that the parties entered into a contract, which included an arbitration clause.

Although *Jones* is cited by the Plaintiff in the unconscionability section, it is worth addressing *Jones* here as that case also discussed when a contract was entered into. (*Jones, supra*, 99 Cal.App.5th 1178.) *Jones* upheld a trial court's ruling that an 81-year-old plaintiff with demonstrated poor technology skills did not validly enter into an arbitration clause in a contract where the contract was 21 pages and the electronic stamp on the document shows it was reviewed for 38 seconds. (*Id.* at 1201.) There are some similarities between this case and *Jones*, including that Plaintiff reviewed the contract here for less than 2 minutes. In *Jones*, however, the plaintiff claimed that she had not signed any contract. Whereas here, Plaintiff understood that certain documents needed to be signed and that he signed where he was told to sign. (Timilsina dec. ¶¶8 and 17.)

The Court finds that the parties entered into an arbitration agreement.

Delegation Clause

In reply, Defendant argues that issues of arbitrability have been delegated to the arbitrator. It argues that the arbitration agreement states that disputes are arbitrated under the American Arbitration Association. Defendant should have raised this issue in its moving papers. Further, on the merits this argument fails.

"The delegation of [arbitrability issues] to the arbitrator must be clear and unmistakable. [Citation.]" (*Cabatit v. Sunnova Energy Corp.* (2020) 60 Cal.App.5th 317, 321-322; *Tiri v. Lucky Chances, Inc.* (2014) 226 Cal.App.4th 231, 242.) The arbitration agreement does not include a clear and unmistakable delegation clause. There is no clear reference to delegation or to the arbitrator deciding these gateway issues.

Defendant then points to the AAA's arbitration rules, which empower the arbitrator to "rule on their own jurisdiction" and argues that this constitutes a delegation clause. [AAA Construction Industry Arbitration Rules, Rule R-9(a)-(b) (2024).] Defendant did not include a copy of these rules, but assuming these rules are as represented, a general reference to arbitrate before AAA is not sufficient to show a clear and unmistakable delegation clause. (See, *Gostev v. Skillz Platform, Inc.* (2023) 88 Cal.App.5th 1035, 1052.)

Therefore, the Court finds issues of arbitrability shall be decided by the Court.

Claims Covered by Agreement

The next question for the Court is whether the arbitration clause includes the claims at issue in this case.

"Courts consistently recognize that the duty to arbitrate a dispute arises from the language of the contract itself. [Citation.] 'An agreement for the submission of a dispute to arbitration defines and limits the issues to be decided.' [Citation.]" (*Brinkley v. Monterey Financial Services, Inc.* (2015) 242 Cal.App.4th 314, 331.) " '[T]he decision as to whether a contractual arbitration clause covers a particular dispute rests substantially on whether the clause in question is "broad" or "narrow." ' [Citation.] 'A "broad" clause includes those using language such as "any claim arising from or related to this agreement" [Citation] or "arising in connection with" the agreement' [Citation]. 'It has long been the rule in California that a broadly worded arbitration clause ... may extend to tort claims that

may arise under or from the contractual relationship. “There is no requirement that the cause of action arising out of a contractual dispute must be itself contractual. At most, the requirement is that *the dispute* must arise out of contract.” [Citations.]” (*Rice v. Downs* (2016) 248 Cal.App.4th 175, 186.)

Here, Plaintiff is suing Bright Planet for violation of Consumer Legal Remedies Act, unfair competition, negligence, construction defect, breach of warranties and violation of home improvement contract requirements.

In the installation agreement with Bright Planet, the parties agreed to arbitrate “all related disputes, claims and counterclaims arising out of or relating to this Agreement, the relationships described hereunder, the Installation, or any alleged or claimed oral or other agreement related to the System. This agreement to arbitrate extends to all claims of any nature, including, but not limited to, claims for breach of contract, tort claims, claims at law or in equity, or claims arising under statute.” (Bright Planet Agreement p. 4 (Comp. Ex. A p. 33).)

The arbitration clause is broad and includes “all disputes” and “claims” “arising out of or relating to this Agreement, the relationships described hereunder, the Installation”. The Court finds that this agreement covers the tort and statutory claims alleged here as they all arise out of the parties’ agreement and the related installation.

Unconscionability

“Unconscionability of the arbitration clause is a defense to a motion to compel arbitration. [Citation.] “One common formulation of unconscionability is that it refers to “an absence of meaningful choice on the part of one of the parties together with contract terms which are unreasonably favorable to the other party.” [Citation.] As that formulation implicitly recognizes, the doctrine of unconscionability has both a procedural and a substantive element, the former focusing on oppression or surprise due to unequal bargaining power, the latter on overly harsh or one-sided results.” [Citation.] ‘Arbitration is favored in this state as a voluntary means of resolving disputes, and this voluntariness has been its bedrock justification.’ [Citation.]” (*Cabatit v. Sunnova Energy Corp.* (2020) 60 Cal.App.5th 317, 322.)

“The party opposing a motion to compel arbitration bears the burden of showing unconscionability. [Citation.] The trial court may exercise its discretion to refuse to enforce a contract if it is both procedurally and substantively unconscionable. In making its determination, the trial court employs a sliding scale: ‘the more substantively oppressive the contract term, the less evidence of procedural unconscionability is required to come to the conclusion that the term is unenforceable, and vice versa.’ [Citation.]” (*Id.*)

Plaintiff has not shown where there is substantive unconscionability in the agreement. For a court to refuse to enforce an arbitration agreement based on unconscionability, there must be both procedural and substantive unconscionability. Since Plaintiff has not shown the agreement contains any substantive unconscionability provisions, this argument fails and the Court need not address the issue of procedural unconscionability further.

FAA and CAA Rules

Plaintiffs argue that the arbitration clause in the subject purchase agreement should not be enforced, based on “a possibility of conflicting rulings on a common issue of law or fact.” (Code Civ. Proc., § 1281.2(c).) However, Defendant has argued that the FAA applies here. “Because the Federal Arbitration Act (9 U.S.C. § 1 et seq.; FAA) contains no provision analogous to section 1281.2,

subdivision (c), that subdivision cannot be applied to deny the enforcement of arbitration clauses governed by the FAA. [Citations.]” (*Gloster v. Sonic Automotive, Inc.* (2014) 226 Cal.App.4th 438, 446.)

Thus, in determining whether to apply section 1281.2(c), the Court must first determine if the FAA applies. Here, the contract with Bright Planet includes a governing law section, which states that “the Federal Arbitration Act governs our agreement to arbitrate, unless specifically prohibited by state law.” (Bright Planet Contract p.4 (Comp. ex. A at p. 33).) Further, Bright Planet’s Vice President of Finance states that “Bright Planet provides solar installation services in multiple states across the United States.” (Johnson dec. ¶13.)

The Court finds that the FAA applies here and therefore, Code of Civil Procedure section 1281.2(c) is preempted as to this agreement.

9. 9:00 AM CASE NUMBER: L25-03358
CASE NAME: JASON CLAUSING VS. MCCracken EXCAVATION & UNDERGROUND INC,
HEARING IN RE: MOTION TO AMEND JUDGMENT TO ADD PARTIES
FILED BY:
TENTATIVE RULING:

Assignee and current judgment creditor George Sommers (“Judgment Creditor”) filed a Motion for Order Amending Judgment Nunc Pro Tunc on February September 13, 2025 (the “Motion to Amend Judgment”). The Motion to Amend Judgment was set for hearing on July 6, 2026. No opposition has been filed.

Background

This matter was initiated by a Request that Clerk Enter Judgment and Judgment on Final Order, Decision or Award of the Labor Commissioner filed by the State of California Department of Industrial Relations. A judgment was entered thereon by the Court on March 26, 2025 (the “Judgment”). The Judgment totaled \$19,782.38 and was entered as against defendant and judgment debtor McCracken Excavation & Underground Inc (the “Judgment Debtor”). An assignment was filed on November 25, 2025, reflecting the assignment of the Judgment to the current Judgment Creditor.

Analysis

Under Code of Civil Procedure section 187, the trial court is authorized to amend a judgment to add additional judgment debtors. Code Civ. Proc. § 187; *Danko v. O’Reilly* (2014) 232 Cal.App.4th 732, 735-36.

This sometimes occurs under an “alter ego” theory. “Judgments may be amended to add additional judgment debtors on the ground that a person or entity is the alter ego of the original judgment debtor.” *Danko v. O’Reilly, supra*, 232 Cal.App.4th at 736, quoting *Greenspan v. LADT LLC* (2010) 191 Cal.App.4th 486. Amendment of a judgment to add an alter ego is an equitable procedure based on the theory that the court is not amending the judgment to add a new defendant but is merely inserting the correct name of the real defendant. *Id.* Such a procedure is an appropriate and complete method by which to bind new defendants where it can be demonstrated that in their capacity as alter ego of the corporation they in fact had control of the previous litigation, and thus were virtually represented in the lawsuit. *Id.*

In California, two conditions must be met before the alter ego doctrine will be invoked. First, there must